

Limited Lifetime Replacement Warranty Terms and Conditions

THIS LIMITED LIFETIME REPLACEMENT WARRANTY (THIS “LIMITED WARRANTY”) GIVES YOU SPECIFIC LEGAL RIGHTS AND YOU MAY ALSO HAVE OTHER RIGHTS, WHICH VARY FROM JURISDICTION TO JURISDICTION.

THE TERMS AND CONDITIONS FOR THIS LIMITED WARRANTY CAN ALSO BE FOUND [ONLINE AT WWW.INSTAPROTEK.COM OR/AND IN THE DOCUMENTATION WE PROVIDE WITH THE PRODUCT.

WE WARRANT DURING THE WARRANTY PERIOD (AS SPECIFIED BELOW), THE PRODUCT WILL BE FREE FROM DEFECTS IN MATERIAL AND WORKMANSHIP. DAMAGES FROM NORMAL WEAR AND TEAR, ALTERATIONS, MISUSE, NEGLIGENCE, ACCIDENT, SERVICE BY NON-AUTHORIZED SERVICE CENTERS, OR ACTS OF GOD ARE NOT COVERED UNDER THIS LIMITED WARRANTY.

WE LIMIT THE DURATION AND REMEDIES OF ALL IMPLIED WARRANTIES, INCLUDING WITHOUT LIMITATION THE WARRANTIES OF MERCHANTABILITY AND FITNESS FOR A PARTICULAR PURPOSE TO THE DURATION OF THIS EXPRESS LIMITED WARRANTY. SOME JURISDICTIONS DO NOT ALLOW LIMITATIONS ON HOW LONG AN IMPLIED WARRANTY LASTS, SO THIS LIMITATION MAY NOT APPLY TO YOU.

OUR RESPONSIBILITY FOR DEFECTIVE GOODS IS LIMITED TO REPLACEMENT AS DESCRIBED BELOW.

YOU SHOULD CAREFULLY REVIEW THESE TERMS AND CONDITIONS. BY FOLLOWING THE REGISTRATION PROCESS OUTLINED HEREIN, YOU ARE CONFIRMING THAT YOU AGREE TO ALL TERMS AND CONDITIONS.

WHAT IS LIFETIME COVERAGE?

This Limited Warranty starts on the date of your purchase and lasts for the normal time expectancy for the use of products in the industry (a “lifetime”), not to exceed the normal time expectancy of the Eligible Device (the “**Warranty Period**”). The definition of the product’s lifetime may vary based on jurisdictional requirements. The Warranty Period is not extended if we repair or replace the product. We may change the availability of this Limited Warranty at our discretion, but any changes will not be retroactive.

WHO MAY USE THIS LIMITED WARRANTY?

[MANUFACTURER/DISTRIBUTOR] (“**we**”) extends this Limited Warranty only to the individual consumer who originally purchased the product from an authorized seller and registered the product in accordance with the instructions provided herein (“**you**”). **You must keep your receipt.** Your receipt must clearly show the place of purchase, date of purchase and the product purchased.

This Limited Warranty is non-transferable and does not extend to any subsequent

owner or other transferee of the product. This Limited Warranty does not extend to any business, organizational, or governmental buyers of the product who use the product for any business, organizational, or governmental purpose.

After purchasing and installing the product on your Eligible Device, **register your product within the Warranty Period** by downloading the *instaProtek* mobile application ("***instaProtek App***") available for download on the Apple or Google Play store.

WHAT DOES THIS LIMITED WARRANTY COVER?

This Limited Warranty covers only defects in material and workmanship for the Warranty Period.

WHAT DOES THIS LIMITED WARRANTY NOT COVER?

This Limited Warranty does not cover any failure or damage due to: (a) improper use, including without limitation, use of the product with any device other than an Eligible Device; (b) failure to follow the product instructions; (c) alterations or modifications; (d) unauthorized repair; (e) normal wear and tear; (f) external causes such as accidents, abuse, neglect, or other actions or events beyond our reasonable control; or (g) acts of God.

WHAT ARE YOUR REMEDIES UNDER THIS WARRANTY?

With respect to any defective product during the Warranty Period, we will replace such product (or the defective part) free of charge[, provided however, you will be responsible for paying a shipping and handling fee of [\$XX.XX] to cover the cost of shipment of the replacement product].

HOW DO YOU FILE A CLAIM?

To file a claim under this Limited Warranty, utilize the *instaProtek App* that you used to register your product. Follow all instructions and allow 7-10 business days for processing and delivery of the replacement product (within the contiguous 48 states). [Note: a shipping and handling fee of [\$XX.XX] applies to each claim.] Each claim is for the replacement of one defective product. If you are seeking replacement for multiple defective products, you must submit a separate claim for each defective product. The defective product does not need to be returned. Replacement products are intended for personal use only and not intended for resale. Resale of the replacement product is prohibited.

LIMITATION OF LIABILITY.

THIS LIMITED WARRANTY SETS OUT THE FULL EXTENT OF OUR RESPONSIBILITIES, AND THE EXCLUSIVE REMEDY FOR DEFECTIVE PRODUCTS. WE SHALL NOT BE LIABLE FOR SPECIAL, INDIRECT, INCIDENTAL, PUNITIVE OR CONSEQUENTIAL DAMAGES (INCLUDING, WITHOUT LIMITATION,

DAMAGES FOR LOSS OF DATA, BUSINESS PROFITS, BUSINESS INTERRUPTION, EXPENSES ARISING OUT OF THIRD-PARTY CLAIMS, INCONVENIENCE, OR ANY OTHER LOSS), WHETHER OR NOT CAUSED BY OR RESULTING FROM BREACH OF CONTRACT, NEGLIGENCE, OR OTHER WRONGFUL ACT OR OMISSION, EVEN IF IT HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. WE DO NOT AUTHORIZE ANY PERSON, ENTITY OR FACILITY TO CREATE FOR US ANY OTHER PRODUCT WARRANTY OBLIGATION OR LIABILITY IN CONNECTION WITH THIS PRODUCT. SOME STATES DO NOT ALLOW FOR THE EXCLUSION OR LIMITATION OF INCIDENTAL OR CONSEQUENTIAL DAMAGES, SO THE ABOVE LIMITATION OR EXCLUSION MAY NOT APPLY TO YOU.